

HOUSE BILL No. 1124

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-41-21.1.

Synopsis: Testing drinking water for lead in school buildings. Requires the person or entity having authority over a school building to: (1) test the drinking water in the school building by a specified time frame; and (2) follow certain guidelines in conducting the testing and remediation. Requires the Indiana department of health to impose a civil penalty on the superintendent of a school corporation or the equivalent for a charter school for failing to have the school building's drinking water tested within the specified time frame.

Effective: July 1, 2026.

Jackson C, Aylesworth

January 5, 2026, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1124

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 16-41-21.1-3, AS ADDED BY P.L.122-2020,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 3. (a) ~~Except as provided in subsection (b),~~ Each
4 person or entity having authority over a school building shall test the
5 drinking water in the school building before ~~January 1, 2023; the dates~~
6 **specified in subsection (b)** to determine whether the drinking water
7 equals or exceeds the action level for lead of ~~fifteen (15)~~ **ten (10)** parts
8 per billion, or ~~fifteen ten~~ one thousandths ~~(0.015)~~ **(0.010)** milligram of
9 lead per liter of water, established by 40 CFR 141.80 as in effect on
10 ~~January 1, 2020; October 30, 2024.~~
11 (b) A person or entity having authority over a school building that
12 is subject to testing under subsection (a) satisfies the requirement of
13 subsection (a) with respect to a school building if the drinking water in
14 the school building:
15 (1) was tested during the lead sampling program for school
16 buildings conducted by the Indiana finance authority in 2017 and
17 2018;



(2) is tested in the lead sampling program for school buildings and child care facilities conducted by the Indiana finance authority in 2019 and 2020; or

(3) has otherwise been tested for compliance with the standards set forth in subsection (a) at least once since 2016.

(b) Beginning July 1, 2026, each person or entity having authority over a school building shall complete the testing of the drinking water in the school building not later than the following assigned date:

(1) School corporations and charter schools with names that begin with the letters A through H, not later than June 30, 2027.

(2) School corporations and charter schools with names that begin with the letters I through P, not later than June 30, 2028.

(3) School corporations and charter schools with names that begin with the letters Q through Z, not later than June 30, 2029.

(c) After calendar year 2022, the drinking water in every school building located in Lake County shall be tested at least one (1) time in each period of two (2) calendar years to determine whether the drinking water equals or exceeds the action level for lead of fifteen (15) parts per billion, or fifteen one thousandths (0.015) milligram of lead per liter of water.

(d) If any testing of drinking water conducted under this section indicates that the presence of lead in the drinking water is equal to or greater than the lead action level of fifteen (15) parts per billion established by 40 CFR 141, Subpart I, as in effect on January 1, 2020, the person or entity having authority over the school building from which the water was taken for testing shall take action to reduce the lead levels in the drinking water to less than fifteen (15) parts per billion.

(c) In conducting the testing required under this section, the person or entity having authority over a school building shall follow the federal Environmental Protection Agency's most recent version of the 3Ts for Reducing Lead in Drinking Water in Schools and Child Care Facilities.

(d) If a test under this section indicates that the drinking water of a school building equals or exceeds the action level for lead, the person having authority over the school building shall follow the:

(1) Indiana finance authority's guidelines; and

(2) national primary drinking water regulations for lead and



1 **copper (40 CFR 141 and 40 CFR 142);**
2 **for remediation.**

3 (e) Each person or entity having authority over a school building
4 that is subject to testing under this section shall seek any ~~state and~~
5 federal grant money available for lead sampling or testing. ~~including~~
6 ~~any money available under the lead sampling program for school~~
7 ~~buildings and child care facilities conducted by the Indiana finance~~
8 ~~authority.~~

9 SECTION 2. IC 16-41-21.1-4 IS ADDED TO THE INDIANA
10 CODE AS A NEW SECTION TO READ AS FOLLOWS
11 [EFFECTIVE JULY 1, 2026]: **Sec. 4. This section applies to a**
12 **superintendent of a school corporation or the equivalent for a**
13 **charter school who:**

14 (1) has authority over a school building; and

15 (2) fails to have the school building's drinking water tested in
16 the time frame specified in section 3 of this chapter.

17 The state department shall impose a civil penalty on the
18 superintendent or the equivalent for the charter school in an
19 amount equal to ten percent (10%) of the superintendent's or the
20 equivalent's annual salary for the year in which the superintendent
21 or equivalent failed to have the school building's drinking water
22 tested.

